

JDF 612	Motion to Seal Conviction Records (District or County Court Conviction)	
1. Court ☐ District ☐ County Colorado County: <u>El Paso</u> Court Address: _____		<i>This box is for court use only.</i>
2. Parties to the Case Plaintiff: People of the State of Colorado v. Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
3. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____		

4. Background

I submit this motion to seal conviction records under C.R.S. §§ 24-72-703 and 706 or 707.

5. My Information *(the Defendant)*

Date of Birth: 1968-12-31

Mailing Address: *(with city/state/zip)* 1188 Upper Notch Crossing Road, Apartment 14B, Colorado Springs, Colorado 80921-2214

Phone: (719) 555-0199 ext. 4417

Email: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

6. Records to be Sealed

I request that the following conviction records be sealed:

- ☐ District or County Court Case Number: _____
- ☐ Prosecuting Attorney
- ☐ Sheriff's Department
 Mailing Address: _____
- ☒ Colorado Bureau of Investigation *(Required)*
 ATTN Identification-Seals, 690 Kipling St. STE 3000, Lakewood, CO 80215
- ☐ Law Enforcement: *(Name)* _____ Case Number: _____
 Mailing Address: _____
- ☐ Law Enforcement: *(Name)* _____ Case Number: _____
 Mailing Address: _____
- ☐ Other: _____
 Mailing Address: _____
- ☐ Other: _____
 Mailing Address: _____

7. Offense Information

I was convicted of these offenses in this case:

- ☐ Petty Offense(s) of _____
- ☐ Misdemeanor Offense(s) of _____
- ☐ Felony Offense(s) of _____

Date Sentenced: _____

Probation/Parole Supervision Termination Date: _____

a) Drug Offenses

Were any of these drug offenses committed before October 1, 2013?

☐ Yes. ☐ No.

Note: The court determines the eligibility of drug offenses (committed before October 1, 2013) by the offense's classification at the time of sealing.

b) Psilocybin Offenses

Do the charges involve psilocybin or psilocyn (under the statutes listed below), and is the act no longer unlawful under C.R.S. § 18-18-434?

Statutes: C.R.S. §§ 18-18-403.5, 404, 405, 411, 412.7, 429, and 430.

☐ Yes. ☐ No.

c) Victim of Human Trafficking

Were you a victim of human trafficking and trafficked for the offense you committed?

☐ No.

☐ Yes.

Eligibility under C.R.S. § 24-72-707

8. Eligibility

a) Convictions Not Eligible

Note: These are not eligible for sealing under C.R.S. § 24-72-706.

- When the only charges in a case are:
 - Class 1 or Class 2 misdemeanor traffic offenses
 - Class A or Class B traffic infractions.
- A conviction for a violation of C.R.S. § 42-4-1301(1) or (2);

- A conviction for an offense for which the underlying basis involved unlawful sexual behavior as defined in C.R.S. § 16-22-102(9);
- A conviction for a violation of C.R.S. § 18-6-401;
- A conviction that is subject to one or more of the following provisions:
- Sentences for a crime involving extraordinary aggravating circumstances pursuant to C.R.S. § 18-1.3-401(8);
- A sentence for an extraordinary risk crime pursuant to C.R.S. § 18-1.3-401(10);
- Sentencing for a crime involving a pregnant victim pursuant to C.R.S. § 18-1.3-401(13);
- Sentencing for a crime pertaining to a special offender pursuant to C.R.S. § 18-18-407;
- Sentencing for a criminal conviction for which the underlying factual basis involves domestic violence as defined in C.R.S. § 18-6-800.3;
- Sentencing for a criminal conviction for a sexual offense pursuant to C.R.S. 18-3-401 through 418;
- Sentencing for any crime of violence pursuant to C.R.S. § 18-1.3-406;
- Sentencing for a felony crime enumerated in the Victim's Rights Act, C.R.S. § 24-4.1-302(1);
- Sentencing for a felony offense in violation of C.R.S. § 18-9-202;
- Sentencing for an offense classified as a class 1 or 2 felony or a level 1 drug felony pursuant to any section of Title 18 of the Colorado Revised Statutes;
- Sentencing for an offense classified as a class 3 felony pursuant to any section of title 18, except for marijuana cultivation under C.R.S. § 18-18-106(8)(a)(II)(B) as it existed prior to July 1, 1992; C.R.S. § 18-18-406(8)(a)(II)(B) as it existed prior to August 11, 2010; or C.R.S. § 18-18-406(6)(a)(II)(B) as it existed prior to October 1, 2013;
- Sentencing for an offense in violation of C.R.S. §§ 18-6-101 through 105;
- Sentencing for an offense in violation of: C.R.S. §§ 18-3.5-103(4) through (9); 18-5-902(1); or 18-7-203.

b) My Eligibility

I qualify to have my conviction records sealed because my conviction:

- ☐ Is eligible for sealing under C.R.S. §§ 24-72-706 or 707.
- ☐ A misdemeanor offense that is not eligible for sealing under C.R.S. § 24-72-706.

Check one:

- ☐ The **district attorney consents** to the sealing.
- ☐ I **request a hearing** to determine if the district attorney consents to the sealing.
- ☐ The **district attorney does not consent** to the sealing.

If the District Attorney does not consent (now or at the hearing), you must show by clear and convincing evidence that:

- the need for sealing the record is significant and substantial,
- the passage of time is such that you are no longer a threat to public safety, and

- the public disclosure of the record is no longer necessary to protect or inform the public.

9. Case Process

Do you believe the Court should have automatically sealed this case under C.R.S. § 13-3-117?

b) Appeals

☐ Yes.* ☐ No.

Appeal Case Number: _____

Result: _____ Date: _____

Do you still owe restitution?

10. Criminal Record

Is a verified copy of your criminal history record (dated within the last 20 days) attached?

☐ Yes. ☐ No.*

* If not, a copy must be filed within ten days of this Petition.

Note: A criminal history record may not be required if 'Yes' is selected in section 7(b).
The court will notify you if a criminal history will be needed for your case.

11. Harm or Adverse Consequences

For convictions other than petty offenses or petty drug offenses:

You must show that the harm to your privacy or the danger of unwarranted, adverse consequences outweighs the public interest in retaining the records.

12. Certificate of Service

On (enter service date) _____

I certify that I sent a copy of this document to the prosecuting attorney by: (select one)

- ☐ Colorado Courts E-Filing. (only available to lawyers)
- ☐ Regular Mail, addressed to:
Name & full address: _____
- ☐ Other: (explain) _____

13. Sign & Date

Print Your Name: Maria-Alejandra O'Shaughnessy-Whitfield

Signature: _____ Date: _____

Counsel Signature: (if any) _____

☐ Esq. Reg No. _____

☐ **b) Eligible Misdemeanor or Felony**

The Motion is for the sealing of an eligible class 1, class 2, or class 3 misdemeanor, a drug misdemeanor, a class 4, class 5, or class 6 felony, or a level 2, 3, or 4 drug felony, and Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **c) Consequences v Public Interest**

The Court finds that the harm to the privacy of the Defendant or the dangers or unwarranted, adverse consequences to the Defendant outweigh the public interest in retaining the records, and the Defendant's criminal history documents that the Defendant has not been convicted of a criminal offense since the date of the final disposition of all criminal proceedings against the Defendant or since the date of Defendant's release from supervision, whichever is later.

☐ **d) Conduct No Longer Unlawful**

The Motion is for sealing an offense that was unlawful at the time of conviction but is no longer unlawful pursuant to section 18-18-434. The District Attorney did not object to the motion, or the defendant showed by a preponderance of the evidence that the underlying factual basis of the conviction sought to be sealed is no longer unlawful under section 18-18-434.

☐ **e) Victim of Human Trafficking**

The Court finds by a preponderance of the evidence that the Defendant was trafficked by another person, as defined by C.R.S. §§ 18-3-503 or 504, to perform the offense for which the Defendant was convicted.

4. Court Orders

a) Records Sealed

Criminal records information relating to and contained in:

- 1) The above-captioned case; and
- 2) Law Enforcement Agency:

Case number: _____

Arrest number: _____

The Records must be sealed immediately, except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist. This order applies to public and private custodians of the records.

b) Case Sealed

The Court directs the Clerk of Court to seal the above-captioned case.

c) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

d) Other Orders

So Ordered

By:

☐ Judge ☐ Magistrate

Dated: